

files a motion or an application to seal within 10 days or such later time as the court has ordered, these documents are to remain conditionally under seal until the court rules on the motion or application and thereafter are to be filed as ordered by the court.” (*Ibid.*)

Genentech filed a pending motion to seal, but it does not address filing under seal the exhibits and moving papers in support of Millennium’s summary judgment motion. (See Genentech’s Notice of Motion to Seal filed June 12, 2026 [hearing on November 6, 2026].) Millennium served the Notice of Lodging on Genentech on May 1, 2026. (Proof of Service filed May 1, 2026.) Thus, the time for Genentech to bring a motion to file these documents under seal has expired, and the court finds these documents that are the subject of the Notice of Lodging may be placed in the court’s public records.

Since it is unclear whether Millennium may be asserting that some portions of the Memorandum and/or Separate Statement are subject to the procedure set forth in rule 2.551(b)(6), PARTIES ARE TO APPEAR to address how to proceed. “If the court denies the motion or application to seal, the moving party may notify the court that the lodged record is to be filed unsealed. This notification must be received within 10 days of the order denying the motion or application to seal, unless otherwise ordered by the court. On receipt of this notification, the clerk must unseal and file the record. If the moving party does not notify the court within 10 days of the order, the clerk must (1) return the lodged record to the moving party if it is in paper form or (2) permanently delete the lodged record if it is in electronic form.” (Cal. Rules of Court, rule, 2.551(b)(6).)

To the extent that the court is ordering the redacted portions of Millennium’s Memorandum (except as to page 12) and Separate Statement of Facts be placed in the court’s public records, Millennium is to re-file and serve these documents with the unredacted portions within ten days of the order instead of having the court clerk place them in the court’s records to ensure that they comply with this order.

Additionally, as noted Genentech has one pending motion to seal, filed June 12, 2026. Millennium has three additional pending motions to seal filed on May 11, 2026, June 12, 2026, and June 22, 2026. All four of these pending motions to seal, deal in some fashion with documents filed in support of or in opposition to the pending Motion for Summary Judgment (“MSJ”) and/or Motion for Summary Adjudication (“MSA”) both of which are calendared for July 17, 2026. These four motions to seal must be adjudicated before the MSJ/MSA so that there is a clear record of what documents may, or may not, be utilized for the MSJ/MSA. See, CRC Rule 2.551(b)(6). Parties are advised that it will not be possible for the Court to hear all four motions to seal before July 17, 2026. Therefore, parties are to meet and confer on scheduling, as it is highly probable there will be a continuance and resetting of all four motions to seal, the MSJ/MSA, Pretrial and Trial dates.

As parties are required to appear, a contest of this tentative is not required and the tentative ruling shall become the order of the Court by Minute Order. Millennium’s counsel to prepare the Order after hearing.

09:00 AM

23-CIV-04084

SYLVIA ALVAREZ-LYNCH VS. MARK LAWRENCE CELLA, ET AL.

LINE 2

SYLVIA ALVAREZ-LYNCH
MARK LAWRENCE CELLA

SARA M. PETERS
MICHAEL J. DALEY

DEFENDANT: CROSS-COMPLAINANT: MARK CELLA, KEVIN BIANCHI'S MOTION FOR GOOD FAITH SETTLEMENT

TENTATIVE RULING:

Initially, the Court notes that Applicants have not provided the address for the hearing. Department 20 is located at the Northern Courthouse, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

The Application for Determination of Good Faith Settlement (the “Application”) brought by Defendants Mark Lawrence Cella and Kevin Bianchi (collectively, “Applicants”) is GRANTED.

Background

The operative First Amended Complaint (“FAC”) alleges that on or about February 12, 2023, Plaintiff was lawfully walking to her car in the parking lot of Defendant Grocery Outlet, Inc. in Pacifica, California, when Defendant Cella struck and ran her over with a vehicle owned

Applicants bring the instant Application asking the Court to find that Applicants’ settlement with Plaintiff for \$200,000.00, which was reached on December 3, 2025, is in good faith (Code Civ. Proc., § 877.6), and to dismiss with prejudice and bar against Applicants “any and all claims, including” any actual or potential claims for implied or equitable indemnity and contribution. (Proposed Order, 2:1.) Applicants ask the Court specifically to dismiss the Complaint and any current or future cross-complaints that may be filed against them by the other parties to this action. (Code Civ. Proc., § 877.6, subd. (c).)

Legal Standards Governing Determination That a Settlement Was Made in Good Faith

The Court determines whether a settlement was made in good faith pursuant to Code of Civil Procedure section 877.6. A determination that the settlement was made in good faith bars “any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc., § 877.6, subd. (c).) “The party asserting the lack of good faith shall have the burden of proof on that issue.” (*Id.*, § 877.6, subd. (d).) More specifically:

Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors[.]

(Code of Civ. Proc., § 877.6, subd. (a)(1).)

[T]he intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the

financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. [Citation.] Finally, practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement. A defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be. [Citation.] The party asserting the lack of good faith, who has the burden of proof on that issue [citation], should be permitted to demonstrate, if he can, that the settlement is so far "out of the ballpark" in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a "settlement made in good faith" within the terms of section 877.6.

(*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499–500 [quotation marks omitted] (*Tech-Bilt*)).

While "[t]he *Tech-Bilt* factors are nonexhaustive and may not apply in all cases" (*Dole Food Co., Inc. v. Sup. Ct.* (2015) 242 Cal.App.4th 894, 909 (*Dole*) (internal quotation and citation omitted)), the Court of Appeal has opined that, "The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be." (*City of Grand Terrace v. Superior Ct.* (1987) 192 Cal.App.3d 1251, 1262 (*City*) (citation omitted).) "The determination as to whether a settlement is in good faith is a matter left to the discretion of the trial court" (*Dole, supra*, 242 Cal.App.4th 894, 909 (internal citations omitted)).

Further, "where as here a written agreement does exist and the settlors want judicial confirmation that their settlement is in good faith, the settling parties *must* produce the agreement for the nonsettling party who opposes the motion." (*Mediplex of California, Inc. v. Superior Ct.* (1995) 34 Cal.App.4th 748, 754 (*Mediplex*) (emphasis added).) "The nonsettling defendant must be given an opportunity to determine independently whether the undisclosed terms arguably have an effect on reducing the offset" (*Mediplex, supra*, 34 Cal.App.4th 748, 749), and "a party may not both seek confirmation of a settlement agreement and withhold it from nonsettling defendants on the grounds of confidentiality" (*Mediplex, supra*, 34 Cal.App.4th 748, 752 (quotation and citation omitted)).

The Motion Is Granted.

Here, Applicants attach a copy of the settlement agreement to the Declaration of their counsel for the review of other parties, as due process requires. Applicants' Proof of Service filed on May 12, 2026, shows the certified return mail receipts for all parties, and no party contests any of the points made herein, nor any aspect of the settlement agreement. The deadline to file an Opposition fell on June 12, 2026, and no Opposition has been filed.

The *Tech-Bilt* factors

A Rough Approximation of Plaintiffs' Total Recovery and the Settlor's Proportionate Liability; and The Amount Paid in Settlement

Plaintiff and Applicants have agreed to Applicants' consideration of \$200,000.00 given for Plaintiff's full and final release. (Daley Decl., ¶¶ 5-6, & Exh. B.) Applicants assert that this agreement is fair, and is proportional to Applicants' share of Plaintiff's claimed liability and damages.

The Allocation of Settlement Proceeds Among Plaintiffs

There is only one Plaintiff who would receive all settlement proceeds.

Recognition That a Settlor Should Pay Less in Settlement Than He Would If He Were Found Liable After a Trial

This factor is recognized.

The Financial Conditions and Insurance Policy Limits of Settling Defendants

Applicants have tendered the full policy limits of each of their automobile insurance policies. (*Id.*, ¶ 6.) Those policies are the only ones applicable to Plaintiff's loss, and neither Applicant has coverage in excess of the \$100,000 policy of each. (*Ibid.*)

The Existence of Collusion, Fraud, or Tortious Conduct Aimed to Injure the Interests of Nonsettling Defendants.

Applicants' counsel declares that the settlement was reached after arms-length negotiation, without collusion, and in good faith. (*Id.*, ¶ 8.) There is nothing to rebut this contention.

Therefore, the Application for Determination of Good Faith Settlement by Defendants Mark Lawrence Cella and Kevin Bianchi is GRANTED in full.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

23-CIV-04084

SYLVIA ALVAREZ-LYNCH VS. MARK LAWRENCE CELLA, ET AL.

LINE 3

SYLVIA ALVAREZ-LYNCH
MARK LAWRENCE CELLA

SARA M. PETERS
MICHAEL J. DALEY

DEFENDANT CHU MANAGEMENT, INC'S MOTION FOR GOOD FAITH SETTLEMENT

TENTATIVE RULING:

Initially, the Court notes that Applicant has not provided the address for the hearing. Department 20 is located at the Northern Courthouse, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant and Cross-defendant Chu Management, Inc.'s Application for Determination of Good Faith Settlement is DENIED WITHOUT PREJUDICE.

Defendant and Cross-defendant Chu Management, Inc. ("Chu") seeks an order finding its settlement with Plaintiff Sylvia Alvarez-Lynch to have been made in good faith, discharging it from liability for claims for equitable indemnity or contribution, and dismissing and barring all cross-complaints filed and to be filed against it. Defendant and Cross-complainant Grocery Outlet, Inc. ("GOI") opposes.

A. Legal Standard on Application to Determine Good Faith Settlement

The Court determines whether a settlement was made in good faith pursuant to Code of Civil Procedure section 877.6. A determination that the settlement was made in good faith bars "any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (Code Civ. Proc., § 877.6, subd. (c).) "The party asserting the lack of good faith shall have the burden of proof on that issue." (*Id.*, § 877.6, subd. (d).) More specifically:

Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors[.]

(Code of Civ. Proc., § 877.6, subd. (a)(1).)

[T]he intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling